

APPS ON DEMAND, LLC D/B/A RAPID CORTEX

Intelligence at the Speed of Response

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

Mutual — Employee / Contractor / Consultant Edition

Company	Apps on Demand, LLC d/b/a Rapid Cortex, a Georgia limited liability company
Individual	[FULL LEGAL NAME]
Role / Title	[JOB TITLE / ENGAGEMENT TYPE]
Effective Date	[DATE OF EXECUTION]
Agreement No.	[RC-NDA-XXXX]

THIS AGREEMENT CONTAINS LEGALLY BINDING OBLIGATIONS. READ CAREFULLY BEFORE SIGNING.

RECITALS

WHEREAS, Apps on Demand, LLC d/b/a Rapid Cortex ("Company") is a technology company engaged in the development, deployment, and operation of artificial intelligence-powered public safety intelligence platforms, emergency communications support tools, real-time dispatch analytics systems, and related technologies for law enforcement, 911 dispatch centers, fire rescue, EMS, and emergency management agencies;

WHEREAS, the Individual named herein ("Individual") is being engaged by or employed by Company in the capacity indicated above, and in the course of such engagement will have access to Confidential Information, proprietary systems, customer data, source code, business strategies, and other sensitive materials belonging to Company and its customers;

WHEREAS, the Company operates in a public safety and emergency communications environment where unauthorized disclosure of information could cause harm to ongoing investigations, emergency operations, agency customers, and the public;

WHEREAS, the parties desire to establish clear, enforceable obligations regarding the protection, use, and return of Confidential Information;

NOW, THEREFORE, in consideration of the Individual's engagement with Company, access to Confidential Information, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

ARTICLE 1 — DEFINITIONS

1.1 "Company"

Apps on Demand, LLC d/b/a Rapid Cortex, a Georgia limited liability company, including its officers, directors, managers, members, employees, contractors, agents, affiliates, subsidiaries, successors, and assigns.

1.2 "Individual"

The person identified in the recitals above who is entering into this Agreement as an employee, independent contractor, consultant, intern, part-time worker, or in any other capacity on behalf of or in connection with Company.

1.3 "Confidential Information"

Confidential Information means any and all non-public information, data, materials, documents, records, or knowledge, in any form or medium (written, oral, electronic, visual, or otherwise), that relates to Company, its customers, or its operations, including without limitation:

- Technical Information: Source code, object code, algorithms, software architecture, data models, database schemas, API specifications, system designs, infrastructure configurations, AWS resource configurations, CloudFormation and SAM templates, deployment scripts, CI/CD pipelines, WebRTC or Kinesis Video Streams configurations, WebSocket protocols, authentication systems, RBAC implementations, encryption keys, security configurations, penetration test results, vulnerability assessments, and all related technical documentation;
- Platform and Product Information: Features, capabilities, roadmap, unreleased features, AI model training data and configurations, integration patterns, CAD integration specifications, dispatch workflow designs, product specifications, UI/UX designs, and any prototype or pre-release materials relating to the Rapid Cortex platform or any component thereof;

- Customer and Agency Information: Identity, contact information, operational configurations, usage patterns, emergency communications data, call recordings, transcripts, incident records, agency-specific customizations, and any Criminal Justice Information (CJI) as defined under the FBI CJIS Security Policy, belonging to or relating to any customer, agency, or end user of Company;
- Business and Commercial Information: Pricing, fee schedules, discount structures, revenue figures, financial projections, sales pipeline, customer lists, prospect information, contract terms, business strategies, marketing plans, partnership discussions, investment information, and any non-public financial data;
- Security and Compliance Information: Security policies, access control procedures, CJIS compliance documentation, audit logs, incident response plans, business continuity plans, disaster recovery procedures, and any information that, if disclosed, could compromise the security posture of Company or its customers;
- Personnel Information: Compensation, performance evaluations, personnel records, organizational charts, hiring plans, and personal information of other employees or contractors;
- Third-Party Information: Confidential information belonging to third parties that Company has received under an obligation of confidentiality, including agency customer data processed through the platform;
- Derivative Works: Any analysis, summary, compilation, notes, or work product created by Individual that is derived from or incorporates any of the above categories.

1.4 "Permitted Purpose"

The performance of Individual's authorized duties in the course of their engagement with Company, and only to the extent necessary for such performance.

1.5 "Trade Secret"

Any Confidential Information that constitutes a trade secret under the Georgia Trade Secrets Act (O.C.G.A. § 10-1-760 et seq.) or the federal Defend Trade Secrets Act (18 U.S.C. § 1836 et seq.), including but not limited to source code, algorithms, system architecture, and customer data compilations.

1.6 "CJI" / "CJIS"

Criminal Justice Information as defined by the FBI Criminal Justice Information Services (CJIS) Security Policy, and the CJIS Security Policy itself. Individual acknowledges that certain customer information processed by Company may constitute CJI and is subject to federal handling requirements.

ARTICLE 2 — CONFIDENTIALITY OBLIGATIONS

2.1 Obligation of Confidentiality

Individual shall hold all Confidential Information in strict confidence. Individual shall not, directly or indirectly, disclose, publish, disseminate, transmit, copy, or otherwise make available any Confidential Information to any third party without the prior express written consent of Company.

2.2 Standard of Care

Individual shall protect Confidential Information using at least the same degree of care Individual uses to protect Individual's own confidential information of similar nature and sensitivity, but in no event

less than reasonable care. In the context of public safety data and CJIS-adjacent information, Individual acknowledges that a heightened standard of care is required.

2.3 Permitted Use Only

Individual shall use Confidential Information solely for the Permitted Purpose. Individual shall not use Confidential Information for personal gain, for the benefit of any competitor, or for any purpose outside the scope of authorized duties.

2.4 No Reverse Engineering

Individual shall not reverse engineer, decompile, disassemble, reconstruct, or attempt to derive source code, algorithms, underlying logic, or architecture from any software, system, or compiled code that Individual accesses in the course of engagement.

2.5 Device and Access Security

Individual shall:

- Access Company systems only on Company-approved devices and networks, or through approved secure access mechanisms (VPN, MFA-protected portals);
- Not store Confidential Information on personal devices, personal cloud storage accounts, or any storage medium not approved by Company;
- Use strong, unique passwords and comply with all Company authentication and access control requirements;
- Immediately report any suspected unauthorized access, data breach, or security incident to Company's designated security contact;
- Lock workstations when unattended and comply with all applicable Company physical security policies.

2.6 Communications Security

Individual shall not transmit Confidential Information via unsecured email, unsecured messaging applications, personal email accounts, or any channel not approved by Company for secure communications. All transmission of Confidential Information must be via Company-approved, encrypted channels.

ARTICLE 3 — EXCLUSIONS FROM CONFIDENTIAL INFORMATION

The obligations of Section 2.1 shall not apply to information that Individual can demonstrate by clear and convincing written evidence:

1. Was publicly known at the time of disclosure to Individual and did not become public through any act or omission of Individual;
2. Became publicly known after disclosure through no fault of Individual;
3. Was rightfully known to Individual without restriction prior to disclosure by Company, as evidenced by written records predating such disclosure;
4. Was independently developed by Individual entirely without use of or reference to Company's Confidential Information;
5. Was received from a third party who had the lawful right to disclose it without restriction.

No exception shall apply to any CJI or agency customer data regardless of public availability claims. The burden of proof for any exception rests entirely with Individual.

ARTICLE 4 — COMPELLED DISCLOSURE

4.1 Legal Process

If Individual is compelled by law, regulation, court order, or governmental authority to disclose Confidential Information, Individual shall:

- Provide Company with prompt prior written notice as soon as legally permissible, and in no event less than ten (10) calendar days before disclosure if practicable;
- Cooperate with Company in seeking a protective order, confidential treatment, or other appropriate relief;
- Disclose only the minimum amount of Confidential Information legally required;
- Treat any disclosed information as continuing to be Confidential Information to the extent permissible by law.

4.2 No Waiver

Compelled disclosure under this Article shall not be deemed a breach of this Agreement and shall not waive Individual's ongoing confidentiality obligations with respect to all other Confidential Information.

ARTICLE 5 — INTELLECTUAL PROPERTY

5.1 Work Made for Hire

To the maximum extent permitted by applicable law, all work product, inventions, developments, improvements, discoveries, designs, software, documentation, analyses, and any other creations (collectively, "Work Product") made, conceived, developed, or reduced to practice by Individual — solely or jointly — in the course of or arising out of Individual's engagement with Company shall constitute "work made for hire" as defined under the Copyright Act (17 U.S.C. § 101) and shall be the sole and exclusive property of Company from the moment of creation.

5.2 Assignment

To the extent any Work Product does not qualify as work made for hire, Individual hereby irrevocably assigns to Company all right, title, and interest — worldwide and in perpetuity — in and to such Work Product, including all intellectual property rights therein, including patents, copyrights, trade secrets, trademarks, and moral rights. Individual waives any moral rights to the fullest extent permitted by law.

5.3 Further Assurances

Individual shall promptly execute, at Company's expense, any documents and take any actions reasonably required by Company to perfect, register, enforce, or otherwise give effect to Company's ownership of Work Product, including patent applications, copyright registrations, and assignment instruments.

5.4 Pre-Existing IP

If Individual brings pre-existing intellectual property to the engagement that will be incorporated into Work Product, Individual must disclose such pre-existing IP to Company in writing prior to engagement. Company and Individual shall negotiate in good faith regarding any license rights

required. Undisclosed pre-existing IP incorporated into Work Product shall be deemed assigned to Company under Section 5.2.

5.5 No License Granted

Nothing in this Agreement grants Individual any license, right, title, or interest in Company's intellectual property, trademarks, source code, platform, or Confidential Information beyond the limited right to use Confidential Information for the Permitted Purpose during the engagement.

ARTICLE 6 — RETURN AND DESTRUCTION OF MATERIALS

6.1 Return Obligation

Upon termination of Individual's engagement — for any reason — or upon Company's written request at any time, Individual shall immediately:

- Return to Company all originals and copies of Confidential Information in any form or medium (physical or digital) in Individual's possession, custody, or control;
- Return all Company-owned equipment, devices, access badges, keys, tokens, and other property;
- Permanently delete and destroy all Confidential Information stored on personal devices, personal accounts, or any non-Company storage medium, and certify such deletion in writing;
- Provide written certification to Company confirming full compliance with this Section within five (5) business days of the request or termination date.

6.2 Digital Access Termination

Individual acknowledges that all Company system access credentials (passwords, API keys, VPN credentials, MFA tokens) are Company property and shall be immediately deactivated upon separation. Individual shall not attempt to access any Company system after separation, regardless of whether credentials remain technically functional.

6.3 Retention of Legal Copy

Individual may retain one archival copy of this Agreement and any related executed documents solely for Individual's personal legal records.

ARTICLE 7 — NON-SOLICITATION

7.1 Customer Non-Solicitation

During Individual's engagement and for a period of twelve (12) months thereafter, Individual shall not, directly or indirectly, solicit, contact, or attempt to induce any customer, agency, prospect, or business partner of Company — that Individual had material contact with or obtained Confidential Information about during the engagement — to cease or reduce their relationship with Company or to engage with a competing service.

7.2 Personnel Non-Solicitation

During Individual's engagement and for a period of twelve (12) months thereafter, Individual shall not, directly or indirectly, solicit, recruit, hire, or attempt to induce any employee, contractor, or consultant of Company to leave Company's employ or engagement, or to violate any agreement with Company.

7.3 Reasonableness

Individual acknowledges that the scope, duration, and geographic reach of these non-solicitation provisions are reasonable and necessary to protect Company's legitimate business interests, customer relationships, and investment in personnel, given the specialized nature of public safety technology and the limited number of potential customers in this market.

ARTICLE 8 — CJIS AND PUBLIC SAFETY DATA OBLIGATIONS

8.1 CJI Acknowledgment

Individual acknowledges that in the course of engagement, Individual may have access to, or develop systems that handle, Criminal Justice Information (CJI) as defined by the FBI CJIS Security Policy. Individual understands that CJI is subject to federal law and the CJIS Security Policy, and that unauthorized access to, use of, or disclosure of CJI may constitute a federal crime.

8.2 CJIS Compliance

Individual agrees to:

- Complete all CJIS Security Awareness Training required by Company or Company's customers before accessing any system that may process CJI;
- Submit to a fingerprint-based background check if required by Company or any customer agency;
- Comply with all applicable requirements of the FBI CJIS Security Policy (current version) with respect to access, handling, storage, transmission, and destruction of CJI;
- Not access, copy, distribute, or use CJI for any purpose other than authorized performance of duties;
- Immediately report any suspected unauthorized access to or disclosure of CJI to Company and, if required, to the relevant CJIS Systems Agency (CSA).

8.3 Emergency Communications Data

Individual shall treat all emergency call recordings, transcripts, incident records, caller information, and AI analysis outputs relating to 911 or emergency communications as Confidential Information subject to the highest level of protection under this Agreement. Individual shall not use, reproduce, analyze, or retain such data beyond what is strictly required for authorized duties.

ARTICLE 9 — TERM AND SURVIVAL

9.1 Effective Date

This Agreement is effective as of the date of Individual's signature (or the date of commencement of engagement if earlier) and continues for the duration of Individual's engagement with Company.

9.2 Survival After Termination

The following obligations survive termination of this Agreement and Individual's engagement for the periods specified:

- General Confidential Information: Obligations under Articles 2, 3, 4, and 6 survive for five (5) years following termination of engagement;

- Trade Secrets: Obligations with respect to Trade Secrets survive indefinitely until such information no longer qualifies as a trade secret under applicable law;
- CJI and Agency Customer Data: Obligations with respect to CJI and agency customer data survive for the longer of (a) five (5) years or (b) until all such data has been confirmed returned or destroyed;
- Intellectual Property: Obligations and assignments under Article 5 survive permanently;
- Non-Solicitation: Obligations under Article 7 survive for twelve (12) months post-engagement;
- Return of Materials: Obligations under Article 6 are effective immediately upon termination and survive indefinitely.

ARTICLE 10 — REMEDIES AND ENFORCEMENT

10.1 Irreparable Harm

Individual acknowledges that any breach or threatened breach of this Agreement will cause Company immediate and irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, in the event of any breach or threatened breach, Company shall be entitled to seek equitable relief — including temporary restraining orders, preliminary injunctions, and permanent injunctions — without the necessity of posting bond or other security, without proving actual damages, and without prejudice to any other rights or remedies available at law or in equity.

10.2 Monetary Damages

In addition to equitable relief, Company shall be entitled to recover all actual, direct, indirect, consequential, and special damages caused by any breach, including lost profits, loss of customer relationships, costs of remediation, regulatory fines or penalties arising from unauthorized disclosure of CJI, and any amounts paid to customers as a result of breach.

10.3 Legal Fees

In any action to enforce this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees, court costs, expert witness fees, and all other litigation expenses from the non-prevailing party.

10.4 Cumulative Remedies

All rights and remedies under this Agreement are cumulative and not exclusive. The exercise of any remedy does not waive or preclude the exercise of any other remedy.

10.5 No Adequate Remedy at Law

Individual expressly waives any defense that Company has an adequate remedy at law in any proceeding for equitable relief under this Agreement.

ARTICLE 11 — REPRESENTATIONS AND WARRANTIES

Individual represents and warrants to Company that:

6. Individual has full authority to enter into this Agreement and that doing so does not violate any other agreement, obligation, court order, or legal restriction to which Individual is subject;

7. Individual is not subject to any non-disclosure, non-compete, or intellectual property assignment agreement with any prior employer or client that would restrict Individual's performance of duties for Company, or if such restrictions exist, Individual has disclosed them in full to Company prior to execution;
8. Individual will not bring to Company, incorporate into any Work Product, or use in the performance of duties any confidential or proprietary information belonging to any prior employer or third party without authorization;
9. Individual understands the nature and scope of this Agreement and has had the opportunity to consult with legal counsel prior to signing.

ARTICLE 12 — GENERAL PROVISIONS

12.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Georgia, without regard to its conflict of laws principles. The Georgia Trade Secrets Act (O.C.G.A. § 10-1-760 et seq.) and Georgia Restrictive Covenant Act (O.C.G.A. § 13-8-50 et seq.) shall apply to the extent applicable.

12.2 Jurisdiction and Venue

The parties irrevocably consent to the exclusive jurisdiction of the state and federal courts located in Georgia for any dispute arising out of or relating to this Agreement. Individual waives any objection to venue or personal jurisdiction in such courts.

12.3 Dispute Resolution

Before initiating formal legal proceedings (other than emergency injunctive relief), the parties agree to attempt in good faith to resolve any dispute through direct negotiation between senior representatives for a period of thirty (30) days from written notice of the dispute. Nothing in this Section limits Company's right to seek immediate equitable relief for breach or threatened breach.

12.4 Entire Agreement

This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior oral or written negotiations, representations, understandings, and agreements regarding confidentiality and non-disclosure. This Agreement does not supersede or modify any separate employment agreement, consulting agreement, or offer letter.

12.5 Amendment

This Agreement may only be amended by a written instrument signed by both parties. No oral amendment is valid.

12.6 Waiver

No waiver of any provision of this Agreement shall be effective unless in writing. Failure to enforce any provision shall not constitute a waiver of the right to enforce that provision in the future or to enforce any other provision.

12.7 Severability

If any provision of this Agreement is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall continue in full force and effect. If a court determines that any non-solicitation or confidentiality provision is overly broad, the court is expressly authorized to reform the provision to the maximum enforceable scope.

12.8 Assignment

Individual may not assign this Agreement or any obligations hereunder. Company may assign this Agreement in connection with a merger, acquisition, reorganization, or sale of all or substantially all of Company's assets, and this Agreement shall bind and benefit Company's successors and assigns.

12.9 Electronic Signatures

The parties agree that electronic signatures, including signatures executed via DocuSign, Adobe Sign, or similar platforms, shall have the same legal force and effect as handwritten signatures. This Agreement may be executed and delivered electronically and shall be binding upon electronic execution. Electronic signatures comply with the Electronic Signatures in Global and National Commerce Act (ESIGN) and the Uniform Electronic Transactions Act (UETA).

12.10 Counterparts

This Agreement may be executed in one or more counterparts (including electronic counterparts), each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

12.11 Notices

All notices under this Agreement shall be in writing and delivered to Company at legal@rapidcortex.us or such other address as Company may designate in writing. Notices to Individual shall be delivered to the email address provided in the signature block below.

12.12 Construction

This Agreement shall be construed as if drafted jointly by both parties. No presumption of ambiguity shall arise against either party as drafter.

12.13 Acknowledgment

Individual acknowledges that Individual has read this Agreement in its entirety, understands its terms and legal significance, and has had the opportunity to consult with legal counsel of Individual's choosing before signing. Individual agrees that this Agreement is fair, reasonable, and necessary to protect Company's legitimate business interests in the public safety technology industry.

SIGNATURE PAGE

Apps on Demand, LLC d/b/a Rapid Cortex — Confidentiality and Non-Disclosure Agreement

IN WITNESS WHEREOF, the parties have executed this Confidentiality and Non-Disclosure Agreement as of the Effective Date set forth above.

APPS ON DEMAND, LLC D/B/A RAPID CORTEX	INDIVIDUAL
Authorized Signatory	Signature
Printed Name	Printed Name
Title	Title / Role
Date	Date
Email	Email

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